

STATE OF NEW YORK

1777--A

2025-2026 Regular Sessions

IN ASSEMBLY

January 14, 2025

Introduced by M. of A. ROSENTHAL, SIMON, BURDICK, SIMONE, SAYEGH, STECK, SHRESTHA, RAMOS, MEEKS, SHIMSKY -- read once and referred to the Committee on Codes -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the penal law and the criminal procedure law, in relation to the regulation of three-dimensional printed firearms

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivision 1 of section 265.10 of the penal law, as
2 amended by chapter 481 of the laws of 2024, is amended and a new subdi-
3 vision 10 is added to read as follows:

4 1. Any person who manufactures or causes to be manufactured any
5 machine-gun, assault weapon, large capacity ammunition feeding device,
6 ghost gun, unfinished frame or receiver, firearm silencer, magazine, or
7 major component of a firearm, rifle or shotgun or disguised gun is guilt-
8 ty of a class D felony. Any person who manufactures or causes to be
9 manufactured any rapid-fire modification device is guilty of a class E
10 felony. Any person who manufactures or causes to be manufactured any
11 switchblade knife, pilum ballistic knife, metal knuckle knife, undetect-
12 able knife, billy, blackjack, bludgeon, plastic knuckles, metal knuck-
13 les, throwing star, chuka stick, sandbag, sandclub or slungshot is guilt-
14 ty of a class A misdemeanor.

15 10. Any person who intentionally sells, distributes, or disposes of,
16 by any means, including via the internet, digital instructions in the
17 form of computer-aided design files, standard triangle/tessellation
18 language files, or other code or instructions that may be used to
19 program a three-dimensional printer to manufacture or produce any
20 machine-gun, assault weapon, large capacity ammunition feeding device,
21 disguised gun, ghost gun, unfinished frame or receiver, firearm silenc-
22 er, magazine, rapid-fire modification device or major component of a
23 firearm, rifle or shotgun, to a person in New York who is not registered

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD00770-02-5

1 or licensed as a gunsmith as provided for in section 400.00 of this
2 chapter with a Type 7 Federal Firearms License, is guilty of a class A
3 misdemeanor.

4 § 2. Section 265.00 of the penal law is amended by adding a new subdi-
5 vision 37 to read as follows:

6 37. "Three-dimensional printer" means a computer or computer-driven
7 machine or device capable of producing a three-dimensional object from a
8 digital model.

9 § 3. Subdivision 8 of section 700.05 of the criminal procedure law is
10 amended by adding a new paragraph (w) to read as follows:

11 (w) Manufacture, transport, disposition and defacement of weapons and
12 dangerous instruments and appliances as provided in subdivision ten of
13 section 265.10 of the penal law.

14 § 4. Severability. If any provision of this act, or any application of
15 any provision of this act, is held to be invalid, that shall not affect
16 the validity or effectiveness of any other provision of this act, or of
17 any other application of any provision of this act, which can be given
18 effect without that provision or application; and to that end, the
19 provisions and applications of this act are severable.

20 § 5. This act shall take effect on the sixtieth day after it shall
21 have become a law.